



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: UDC-25-33 | Industrial Warehousing
Date: March 10, 2025

Background:

The item for consideration is an *Outside User Agreement*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction 3/10/2025
- Public Services Committee 3/17/2025
- Consideration 3/24/2025

Attachments:

1. Resolution
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING WATER AND SANITARY SEWER SERVICE BY OUTSIDE USER AGREEMENT FOR THUNDER BASIN LAND CO LLC, FOR LAND LOCATED SOUTH OF HIGH PLANS ROAD AND WEST OF SOUTH GREELEY HIGHWAY."

WHEREAS, Thunder Basin Land Co, LLC, is the owner of real property located in Laramie County, Wyoming, more specifically described as: Tracts 4 through 8, Cheyenne Power Park;

WHEREAS, Thunder Basin ("the Applicant") submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for water and sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties;

WHEREAS, pursuant to Resolution No. 3577 (adopted Sept. 26, 1994), BOPU is instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the application for sanitary sewer services and water services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne, provided that the proposed development will comply with City Standards, or applicable City relief processes.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the application submitted by the Applicant to BOPU for water and sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property more specifically described above is hereby approved subject to the following conditions: 1) The proposed development shall comply with City Standards, or applicable City relief processes; and, 2) The property owner shall initiate annexation pursuant to Wyo. Stat. § 15-1-403 no later than September 1, 2026.

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s), subject to the conditions imposed by the Governing Body.

PRESENTED, READ AND ADOPTED this _____ day of _____,
2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk



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CITY OF CHEYENNE GOVERNING BODY
MARCH 10, 2025
STAFF REPORT

FILE: PUDC-25-33: Cheyenne Power Park - Outside User Agreement

REQUEST: An outside user agreement for the provision of sewer and water to properties outside City limits.

LOCATION: South of High Plains Road and west of South Greeley Highway.

APPLICANT: Thunder Basin Land CO LLC

AGENT: Casey Palma, Palma Land Planning

OWNERS: Thunder Basin Land CO LLC

PREPARED BY: Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

The applicant is requesting connection to BOPU sanitary sewer services and water services for property outside City limits. It is City Staff's understanding that the property is intending to develop using a funding source that is unavailable if the property is within City limits. Subsequent to securing funding, the owner would then annex into the City. This property is currently mostly vacant but is proposed to have multiple warehouses. There is currently no existing sewer in the area or other outside user agreements. City water is currently adjacent to the property along the north side.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial	County Planned Unit Development (PUD)	Vacant / Industrial
North	Mixed-use Commercial	County CB Community Business	Commercial
South	Mixed-use Commercial	County AR	Single-family Residential
East	Industrial	County Planned Unit Development (PUD)	Industrial
West	Mixed-use Commercial	County AR	Single-family Residential

The property is currently zoned a PUD Planned Unit Development in the County.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Population served
- Considerations on the effect on future annexation(s)
- Fiscal cost/benefit to the City and the BOPU
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The proposed use of the properties is for industrial warehousing. Sewer will need to be developed in the area and connected into South Cheyenne Water and Sewer district at the intersection of High Plains Road and South Greeley. Water is available within High Plains Road, but would need to be extended into the development.

Property tax would increase, but the City would not have any income from the property tax in the area at this time. The BOPU may charge a higher rate for outside users. The sewer infrastructure will need to

be extended to this area as it does not exist already, and Developer will be responsible for extending the infrastructure. City police, fire, and sanitation services are within this area as High Plains Road and the large 943 acre parcel to the northwest are both within City Limits. Staff's understanding is that this property will be annexed into the City once funds are secured. The funds looking to be secured are only available if the development takes place outside City limits. Staff recommends a condition that the applicant annex pursuant to Wyo. Stat. § 15-1-403 no later than September 1, 2026.

The Comprehensive Plan designates this area as Mixed-use Residential – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, the following comments were received:

- Planning and Engineering
 - The proposed development will comply with City Standards, or applicable City relief processes.

CONCLUSION:

Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement with the conditions that the proposed development shall comply with City Standards, or applicable City relief processes and that the property submit for annexation no later than September 1, 2026.

STAFF RECOMMENDATION:

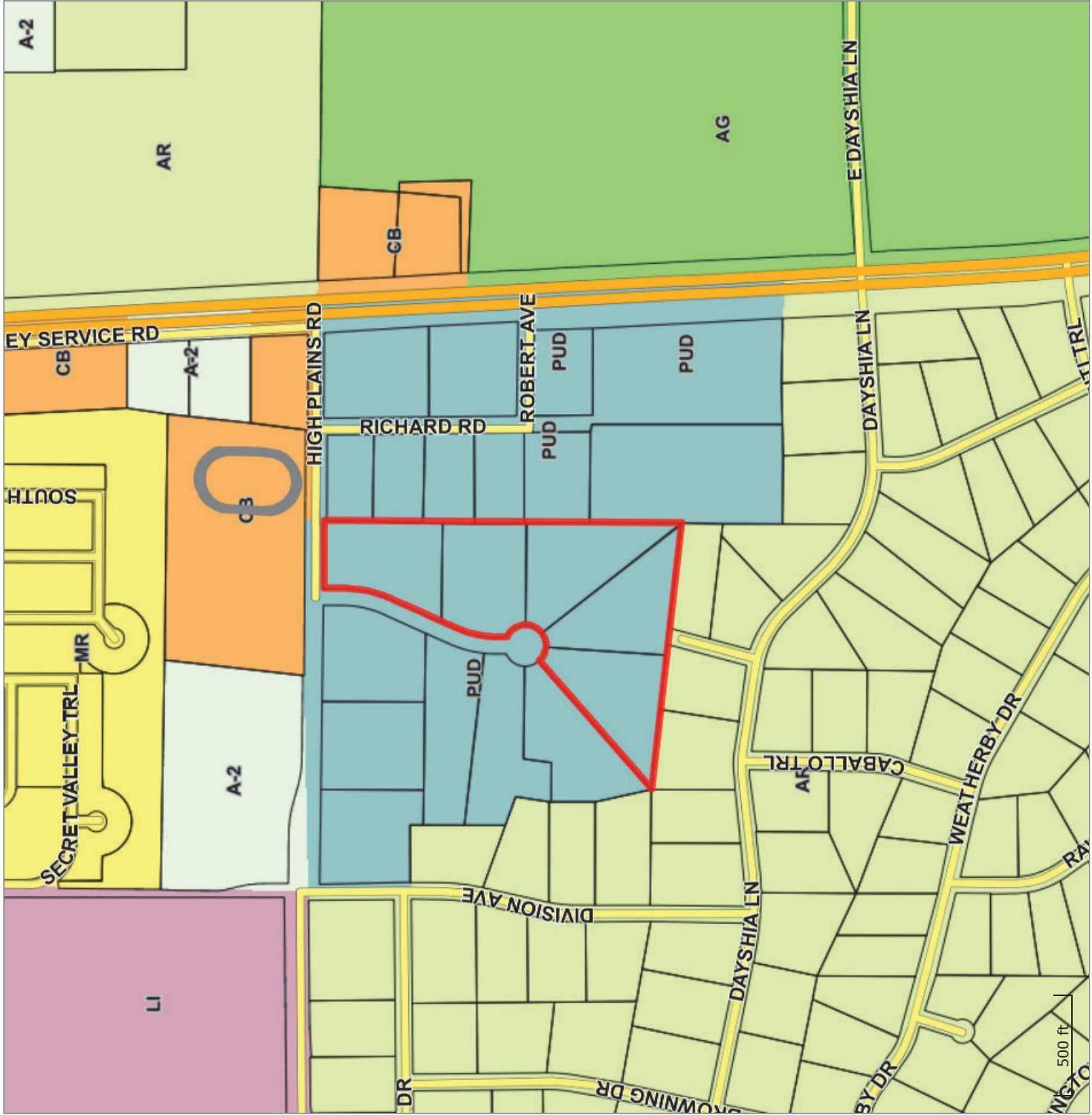
Staff recommends approval of the proposed outside user agreement subject to the following conditions:

1. The proposed development shall comply with City Standards, or applicable City relief processes.
2. The property owner initiates annexation pursuant to Wyo. Stat. § 15-1-403 no later than September 1, 2026.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Application
4. Applicant-submitted proposed site plan

Laramie County Wyoming MapServer



- Interstate
- Major Road
- imps only
- HR
- MR
- LR
- NR-2
- NR-3
- AR
- A-1
- A-2
- AG
- MUR
- CBD
- CB
- NB
- MU
- MUB
- MUE
- HI
- LI
- P
- AD
- PUD
- X



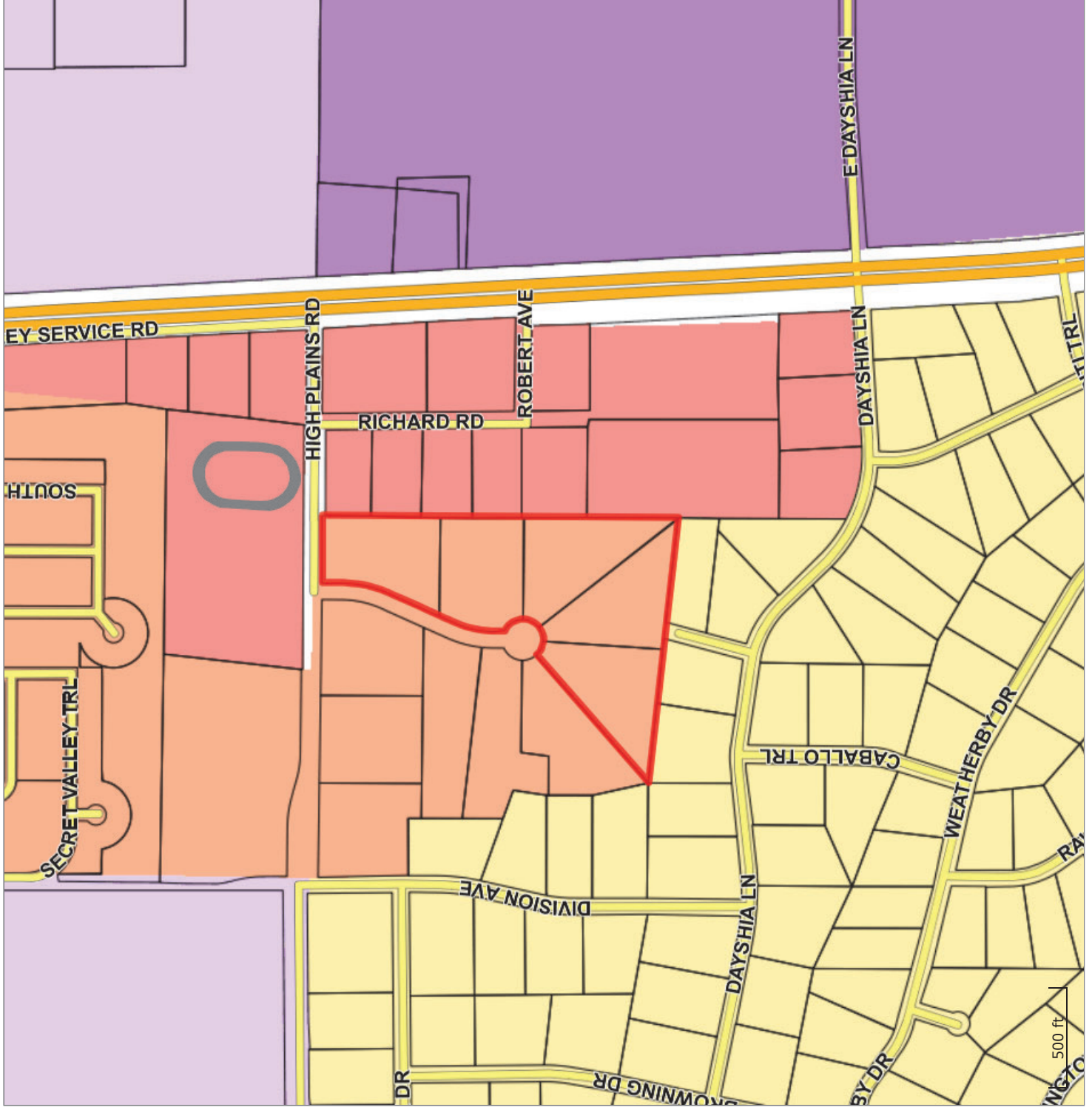
This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, and makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.
printed 3/5/2025

Laramie County Wyoming MapServer

- Interstate
- Major Road
- Imps only
- Agricultural/Rural
- Rural Residential
- Urban Transition Residential
- Urban Residential
- Mixed-Use Residential
- Mixed-Use Commercial
- Mixed-Use Employment
- Industrial
- Central Business District
- Community Business
- Public and Quasi-Public
- Military/Federal
- Open Space and Parks



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printed 3/5/2025





PUDC-25-33

Outside User's Agreement

Status: Active

Submitted On: 2/12/2025

Primary Location

5110 BADLANDS DR
Cheyenne, WY 82007

Owner

Thunder Basin Land Co, LLC
418 N 9TH AVE GREELEY, CO
80631

Applicant

 Casey Palma
 307-996-8281
 casey@plandesignwy.com
 1775 Goodnight Trail
Suite 210
Cheyenne, WY 82007

Application Information

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Written Statement*

±125,000 KSF Industrial Warehousing (5) total structures including Existing
±12,000 KSF Office/ Warehouse

I understand that I may not be eligible for an Outside User's Agreement if the property is close to current City limits.*



Number of connections to the BOPU system proposed*



5

Dwelling units served* 

0

Anticipated jobs created* 

65

Review Criteria

BOPU has the capacity to serve.*



The connection(s) proposed have a logical layout.*



Effect of population served (employees or residents).*



Serving the property will not be detrimental to the City's ability to annex in the area.*



The anticipated financial impact to the City and BOPU. This is more than the direct costs or payments, and will include effects like property taxes, sales taxes, maintenance costs, etc.*



The Comprehensive Plan's anticipated use patterns for the area.*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✔ Casey L. Palma for Palma Land Planning, LLC
Feb 4, 2025

Attachments



25-33_POSTED NOTICE CheyennePowerPark-ThunderBasinLandCo.jpeg

25-33_POSTED NOTICE CheyennePowerPark-ThunderBasinLandCo.jpeg

Uploaded by Casey Palma on Feb 20, 2025 at 1:12 PM

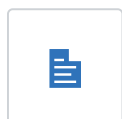


Letter of Authorization

REQUIRED

CityLOA-SIGNED_ThunderBasinLandCo_Feb2025.pdf

Uploaded by Casey Palma on Feb 12, 2025 at 4:25 PM



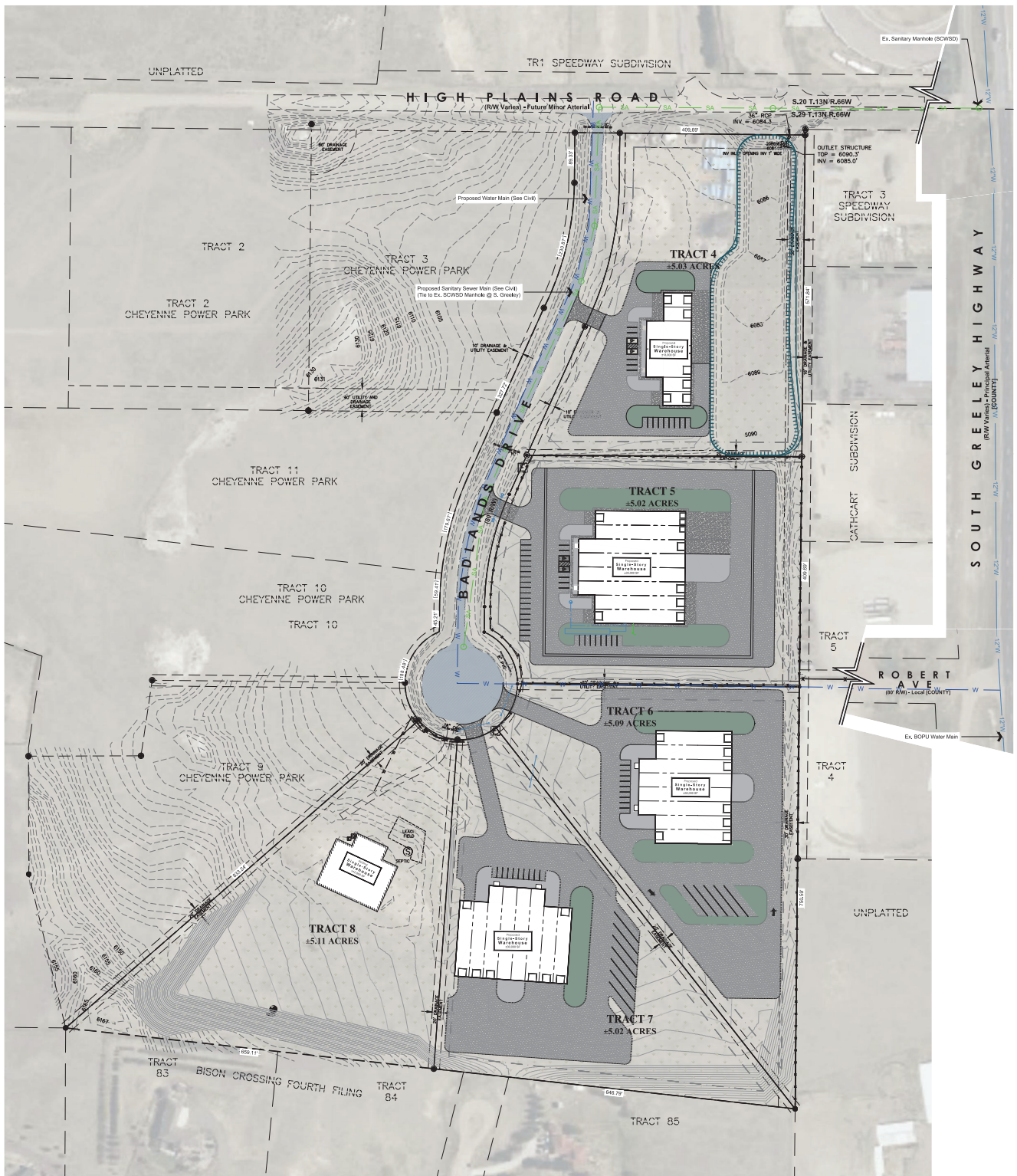
Plot Plan / Site Plan / Plat Map

REQUIRED

25002-ThunderBasin_ProjectAce_CONCEPT_021225.pdf

Uploaded by Casey Palma on Feb 12, 2025 at 4:35 PM

	Outside User's Questionnaire ThunderBasin-CheyennePowerPark_OUA-questionnaire_Completed.pdf Uploaded by Casey Palma on Feb 12, 2025 at 4:28 PM	REQUIRED
	BOPU Water and Flow Worksheet PROJECT ACE - Flow Worksheet.pdf Uploaded by Casey Palma on Feb 10, 2025 at 1:43 PM	REQUIRED
	Proof of Ownership DEED-CPP_T4-8.pdf Uploaded by Casey Palma on Feb 7, 2025 at 1:00 PM	REQUIRED



Site Development Concept Exhibit

Tracts 4-8 Cheyenne Power Park, Laramie County, Wyoming

0 40' 80' 160'
SCALE: 1" = 80'

Notes

- Boundary and topographic information was provided by Stettin Surveying. Aerial photography per 2025 Maxar/CNES (2025) Distribution Airbus DS).
- Proposed architectural footprint shown is provided by Client.
- Proposed accesses to right-of-way are to be full turning movement.
- Civil Engineering details and proposed grading provided by Lovas Engineering, P.C. Stormwater detention and drainage systems shown are intended to serve multiple lots. Unless otherwise noted, concrete curb & gutter are 6" vertical. Sidewalks are 5' width. Noise-in parking is 10' x 20'.
- Landscape and other site furnishings are to be developed during site and engineering schematic development plan processes.
- This plan is intended as a general concept for discussion purposes only. Actual site and building designs may vary and will be provided with appropriate submittal(s) to the appropriate jurisdiction(s) at the appropriate time(s).

Development Summary

Legal Description: Tracts 4, 5, 6, & 7, Cheyenne Power Park, Laramie County, WY

Property Address: TBD - Badlands Drive, 82007

Proposed Use: Industrial Warehousing

Existing Zoning: PUD - Cheyenne Power Park Planned Unit Development (County)

Proposed Zoning: LI - Light Industrial

Future Land Use Plan Designation:

Mixed-Use Residential (consistent with PUD Mixed-Use "Industrial/Residential" Zoning)

Proposed Water Service: (5) 2" Fire/Domestic with 12" BOPU main extension (±2,730 LF) [OUA]

Proposed Sewer Service: (5) 6" via SCWSD main extension (±2,340 LF) [OUA]

Required Building Setbacks: "varies"
(with re-zone to LI): 25' from all streets

Maximum Impervious Coverage: "varies"
(with re-zone to LI): 85%

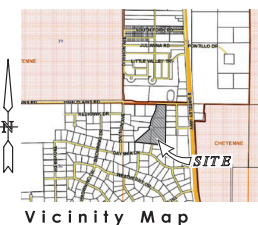
Maximum Building Height: N/A
(for proposed building heights see Architectural)

Project Land Area(s):

Tract 4	± 5.03 Acres [20%]
Tract 5	± 5.02 Acres [20%]
Tract 6	± 5.09 Acres [20%]
Tract 7	± 5.02 Acres [20%]
Tract 8	± 5.11 Acres [20%]
Total Land Area:	± 25.27 Acres [100%]

Existing/Planned Building Area(s):

Tract 4 (TBD Badlands Dr)	± 13,000 SF [11%]
Tract 5 (5007 Badlands Dr)	± 35,000 SF [29%]
Tract 6 (TBD Badlands Dr)	± 30,000 SF [25%]
Tract 7 (TBD Badlands Dr)	± 30,000 SF [25%]
Tract 8 (5110 Badlands Dr)	± 12,000 SF [10%]
Total Project Area:	± 108,160 SF [100%]



Vicinity Map

N.T.S.

Prepared for:



Prepared: January 2024